

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 1**  
**Honorable Eunice Lee, Presiding**  
TBD, Courtroom Clerk  
191 North First Street, San Jose, CA 95113

**DATE: July 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.**

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.  
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**LAW AND MOTION TENTATIVE RULINGS**

**FOR APPEARANCES:** Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

**SCHEDULING MOTION HEARINGS:** Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

**FOR COURT REPORTERS:** The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

[https://www.scscourt.org/general\\_info/court\\_reporters.shtml](https://www.scscourt.org/general_info/court_reporters.shtml)

**RECORDING IS PROHIBITED:** As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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**LAW AND MOTION TENTATIVE RULINGS**

|                               |            |                                                                                      |                                                                                                                                                                                                                                                                  |
|-------------------------------|------------|--------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>9:00 A.M.</b>              |            |                                                                                      |                                                                                                                                                                                                                                                                  |
| <a href="#">LINE 1</a>        | 24CV430173 | Lee Leong vs<br>Ashley A. Lopez                                                      | <b>Motion for Sanctions</b><br>OFF CALENDAR. On March 26, 2026, the parties notified the court of a settlement agreement. On July 9, 2026, the moving party/defendant Lopez moved to dismiss the motion.                                                         |
| <a href="#">LINE 2</a>        | 24CV433824 | Joseph Alejandro<br>vs Hugo Santos et<br>al                                          | <b>Motion to Appoint Appraiser for Partition</b><br>OFF CALENDAR. On July 6, 2026, the parties reached a stipulation for interlocutory judgment of partition and appointment of referee, which the Court granted. The parties moved to vacate this hearing date. |
| <a href="#">LINE 3</a>        | 24CV442351 | City of San Jose<br>vs Roy Abbott                                                    | <b>Permanent Injunction and Entry of Default Judgment</b><br>Parties to Appear. Scroll down to Line 3 for Tentative Ruling.                                                                                                                                      |
| <a href="#">LINE 4</a>        | 24CV451675 | Leticia Reyes<br>Parral vs Sandridge<br>LLP et al                                    | <b>Motion for Leave to File</b><br>Scroll down to Line 4 for Tentative Ruling.                                                                                                                                                                                   |
| <a href="#">LINE 5</a>        | 25CV463382 | UHG I LLC vs<br>Travis Fong                                                          | <b>Motion for Order to Deem Admissions Admitted</b><br>Scroll down to Line 5 for Tentative Ruling.                                                                                                                                                               |
| <a href="#">LINE 6</a>        | 25CV467382 | Daniel Kelly vs<br>Ford Motor<br>Company et al                                       | <b>Petition to Compel Arbitration</b><br>Scroll down to Line 6 for Tentative Ruling.                                                                                                                                                                             |
| <a href="#">LINES<br/>7-8</a> | 25CV469153 | Aida Setka vs<br>Subaru of<br>America, Inc. et al                                    | <b>Motion to Strike (Line # 7) and Demurrer (Line # 8)</b><br>Scroll down to Lines 7 - 8 for Tentative Ruling.                                                                                                                                                   |
| <a href="#">LINE 9</a>        | 25CV479068 | Creditors<br>Adjustment Bureau,<br>Inc. vs Jam General<br>Contractors Inc.<br>et al. | <b>Motion to Strike</b><br>Scroll down to Line 9 for Tentative Ruling.                                                                                                                                                                                           |

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**LAW AND MOTION TENTATIVE RULINGS**

|                        |            |                                                          |                                                             |
|------------------------|------------|----------------------------------------------------------|-------------------------------------------------------------|
| <b>9:01<br/>A.M.</b>   |            |                                                          |                                                             |
| <a href="#">LINE 1</a> | 23CV418208 | Zoe Binschus vs<br>Pamela Edillon,<br>M.D. et al         | <b>Minor's Compromise Claim</b><br>Parties to appear.       |
| <a href="#">LINE 2</a> | 25CV461304 | Bueno People<br>Ltd vs<br>Chargelink, LLC                | <b>Order of Examination</b><br>Parties to appear.           |
| <a href="#">LINE 3</a> | 25CV473752 | Bank of America<br>N.A. vs Hector<br>Calouro             | <b>Motion to Withdraw as Attorney</b><br>Parties to appear. |
| <a href="#">LINE 4</a> | 25CV477635 | Mid-Century<br>Insurance<br>Company vs<br>Justin Collins | <b>Motion to Withdraw as Attorney</b><br>Parties to appear. |

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9:00 A.M.

Calendar Line # 3

Case Name City of San Jose vs Roy Abbott

Case No. 24CV442351

## Permanent Injunction and Entry of Default Judgment

### **I. BACKGROUND**

This case stems from a Complaint filed by Plaintiff City of San Jose (“City”) against Defendant Roy Abbott (“Abbott”) on July 2, 2024 alleging public nuisance and unlawful and unfair business practices at the residential property located at 1906 Somersworth Drive, San Jose, California 95124 (“Property”). (Complaint at p. 1-10). Plaintiff City sought declaratory and injunction relief as well as pecuniary penalties and attorney’s fees and costs. (*Id.*, at p. 11-12). On July 17, 2024, Plaintiff City obtained a Temporary Restraining Order that the Honorable Helen E. Williams authorized. On September 5, 2024, Plaintiff City sought a Preliminary Injunction against Defendant Abbott that was authorized by Judge Williams and filed on September 9, 2024.

The City also moved for default judgment against the Defendant. On September 5, 2024, Entry of Default was entered against Defendant Abbott. On March 4, 2025, Defendant Abbott filed a motion to set aside the default and for leave to file an answer that was heard on September 30, 2025 by the Honorable Shella Deen. After the hearing, Judge Deen granted the defendant’s motion to set aside the default based on a plausible showing of mistake, inadvertence, and excusable neglect and directed Defendant to file responsive pleadings to the Complaint within ten court days. The City’s request for penalty in the amount of \$1,000.00 was denied without prejudice. Defendant Abbott filed an Answer on November 25, 2025 and then a First Amended Answer on December 23, 2025.

On May 20, 2025, Plaintiff City of San Jose filed this motion for permanent injunction and entry of default judgment against Defendant Roy Abbott.

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the City’s moving papers including a notice of the motion for permanent injunction and entry of judgment (totaling 2 pages); memorandum of points and authorities in support of the motion (totaling 8 pages); Declaration of Vance Chang in support of Plaintiff’s motion (totaling 3 pages) and attached Exhibit ; Request for Judicial Notice and attached Exhibits A-C; proof of service; case status conference statements; and the pleadings.

### **II. LEGAL STANDARD**

Pursuant to Civil Code section 3422, “a final injunction may be granted to prevent the breach of an obligation existing in favor of the applicant: (1) Where pecuniary compensation would not afford adequate relief; (2) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief; (3) Where the restraint is necessary to prevent a multiplicity of judicial proceedings; or (4) Where the obligation arises from a trust.” (Civ. Code § 3422).

A final judgment on the merits. (*Aspen Grove Condominium Association v. CNL Income Northstar LLC* (2014) 231 Cal.App.4th 53, 58).

“The first two statutory grounds embody the requirement that to obtain an injunction a plaintiff ordinarily must show that the defendant's wrongful acts threaten to cause irreparable injury, meaning injury that cannot adequately be compensated in damages.” (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1167).

### III. ANALYSIS

On January 13, 2026, the parties filed status conference statements. It is undisputed that Defendant Abbott no longer resides at the Property. The defendant asserts that the City did not allege any recent wrongful acts by the defendant. Defendant Abbott is not seeking a termination of the preliminary injunction that was authorized on September 9, 2024. (Defendant's Case Management Statement, p. 2). However, Defendant Abbott seeks status quo to continue and that no permanent injunction be issued pending resolution of the criminal cases (Santa Clara County dockets C2407675 and C2512367) and this civil case. (*Id.*). Plaintiff asserts that the defendant's blanket assertion of his Fifth-Amendment rights to all facts is an insufficient response to the Complaint and argues that C2512367 is not related to the civil matter, but concedes that docket C2407675 involved overlapping facts in the civil matter. (Plaintiff's Case Management Statement, p. 2). Plaintiff objects to any stay in the civil proceedings and argues that the defendant has not filed a motion. The Court agrees that the motion at hand does not involve a motion to stay and will not address any stay at this time.

Plaintiff also argues, “Defendant has failed to oppose Plaintiff's Motion for Permanent Injunction and the Court should therefore grant Plaintiff's Motion.” (*Id.*). The Court rejects the argument that a failure to oppose a motion results in an automatic grant of a motion without further analysis. While the Court notes that a failure to oppose a motion leads to the presumption that there is no meritorious arguments (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489), the Court analyzes the substantive merits of the request for a permanent injunction at this juncture.

Here, most notably, there is no final judgment. Permanent injunctions are obtained through judgment after trial. The plaintiff's motion for entry of default judgment is rendered MOOT as Judge Deen granted the motion to vacate the default entered on September 30, 2025. Defendant filed an Answer on November 25, 2025, and First Amended Answer on December 23, 2025 in response to the Complaint in this matter.

In *DVD Copy Control Assn., Inc. v. Kaleidescape, Inc.* (2009) 176 Cal.App.4th 697, 721–722, the Court held that: “It is common to speak of the need to show threatened irreparable harm as the basis for an injunction. (6 Witkin, Cal. Procedure (2008) Provisional Remedies, § 295, p. 236). But the concept of irreparable harm means more than harm that cannot be repaired. Irreparable harm includes “ ‘that species of damages, whether great or small, that ought not to be submitted to on the one hand or inflicted on the other.’ . . . [Citation.] . . . ‘The argument that there is no “irreparable damage,” would not be so often used by [defendants] if they would take the trouble to observe that the word “irreparable” is a very unhappily chosen one, used in expressing the rule that an injunction may issue to prevent wrongs ... which occasion damages estimable only by conjecture and not by any accurate standard.’ ” (*Wind v. Herbert* (1960) 186 Cal.App.2d 276, 285, 8 Cal.Rptr. 817). Irreparable harm may be established where there is the fact of an injury, such as that arising from a breach of contract, but where there is an inability to ascertain the amount of damage. In other words, to say that the harm is irreparable is simply another way of saying that pecuniary compensation would not afford adequate relief or that it would be extremely difficult to ascertain the amount that would afford adequate relief. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1167, 42 Cal.Rptr.3d 191; Civ. Code, § 3422.).”

Plaintiff City fails to show entitled to a permanent injunction. Critically, Plaintiff does not explain why a permanent injunction is needed as the defendant no longer resides at the Property, there have allegedly been no new violation of the preliminary injunction in place; pecuniary compensation would not afford adequate relief; no showing that it would be extremely difficult to ascertain the amount of compensation; that the restraint would prevent multiplicity of

judicial proceedings – in fact, there are two carinal case pending: Santa Clar County dockets C2407675 and C2512367 against the Defendant; and no showing that the obligation arises form a trust.

#### **IV. CONCLUSION**

Based on the foregoing, the plaintiff's motion for permanent injunction is DENIED without prejudice as premature on the grounds that there is no final judgment. The Preliminary Injunction executed by Judge Williams on September 9, 2024 remains in effect until a final determination of the merits of the claims at issue are adjudicated.

The plaintiff's motion for entry of default judgment is rendered MOOT as noted above based on the September 30, 2025 Court Order authorized by Judge Shella Deen granting the motion to vacate the default judgment.

The Court will prepare the formal Order.

#### **Calendar Lines # 4**

**Case Name** Leticia Reyes Parral vs Sandridge LLP et al

**Case No.** 24 CV451675

#### **Motion for Leave to File**

Before the court is Plaintiffs' motion for leave to amend the complaint to add punitive damages against defendant Coe Orchard Equipment, Inc. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

#### **I. BACKGROUND**

On October 12, 2023, decedent Ofelio Castro Reyes, Jr. ("Decedent") was in the course and scope of his employment with Kings FLC, a subcontractor hired, supervised and controlled by defendant Sandridge Partners L.P. ("Sandridge") to perform farming and harvesting work at defendant Sandridge's property located at Utica Avenue and 25<sup>th</sup> Street in Kettleman City, California ("Premises"). (Complaint, ¶¶3 and 14).

Decedent was operating a B8 R-Series Reservoir Cart ("Cart") to harvest pistachios when he was crushed to death by the screw conveyor in the equipment. (Complaint, ¶¶14 – 15). Defendant Coe Orchard Equipment, Inc. ("COE") is the designer, manufacturer, distributor, lessor and/or seller of the Cart. (Complaint, ¶¶4, 9, 12, and 15).

On November 13, 2024, plaintiffs Leticia Reyes Parral ("Parral"), individually and as successor-in-interest and personal representative of Decedent's estate, and Ofelio Castro Reyes, Sr., filed a complaint against defendants Sandridge and COE asserting causes of action for:

- (1) Premises Liability [against defendant Sandridge]
- (2) General Negligence [against defendant Sandridge]
- (3) Strict Products Liability—Design Defect
- (4) Strict Products Liability—Manufacturing Defect
- (5) Strict Products Liability—Failure to Warn
- (6) Products Liability—Negligence
- (7) Products Liability—Negligence—Failure to Warn

## (8) Wrongful Death—Survival Action CCP 337.30

On January 3, 2025, defendant Sandridge filed an answer to plaintiffs' complaint.

On February 13, 2025, defendant COE filed an answer to plaintiffs' complaint.

On April 6, 2026, plaintiffs filed the motion now before the court, a motion for leave to amend the complaint to add punitive damages against defendant COE [and to correct the name of plaintiff Ofelio Castro Reyes, Sr. to Ofelio Castro Rivera].

### II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 473, subdivision (a)(1):

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., §473, subd. (a)(1)).

“Leave to amend is liberally allowed.” (*Bettencourt v. Hennessy Industries, Inc.* (2012) 205 Cal.App.4th 1103, 1111). “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530). “Of course, if the proposed amendment fails to state a cause of action, it is proper to deny leave to amend.” (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230).

### III. ANALYSIS

#### A. CORRECTION OF PLAINTIFF'S NAME - OFELIO CASTRO REYES, SR. TO OFELIO CASTRO RIVERA

There is no opposition to plaintiffs' request for leave to amend the complaint to correct the name of plaintiff Ofelio Castro Reyes, Sr. to Ofelio Castro Rivera.

#### B. MOVING ADD CLAIM FOR PUNITIVE DAMAGES AGAINST DEFENDANT COE

In *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 26 (*Searle*), the court wrote, “In California the award of damages by way of example or punishment is controlled by Civil Code section 3294, which authorizes that kind of award against a tortfeasor who has been guilty of ‘oppression, fraud or malice, express or implied.’” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff *or* despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code §3294, subd. (c)(1); emphasis added).

To plead a “willful and conscious disregard of the rights of others,” a plaintiff need only allege, “that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211 (*Lackner*)). However, this alternative definition of malice also requires that the conduct be despicable. “‘Despicable conduct’ has been described

as conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Citation]. Such conduct has been described as ‘[having] the character of outrage frequently associated with crime.’” (*American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050). “[I]n cases involving conduct performed without intent to harm, a finding of ‘malice’ for punitive purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amounted to ‘despicable conduct’ and that such despicable conduct was carried on with a ‘willful and conscious disregard’ of the rights or safety of others.” (See *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704 (*College Hospital*)).

Defendant COE contends the proposed amendment does not allege facts sufficient to support a claim for punitive damages because the factual basis for plaintiffs’ allegation that defendant COE was aware of the probable dangerous consequences of its conduct are two lawsuits filed by different plaintiffs involving allegations of death/ injury arising from equipment manufactured by COE. Defendant COE argues that even if these prior lawsuits placed it on notice that allegations have been made, they are only unproven allegations.

Regardless of whether the allegations made in the other prior lawsuits are ultimately proven true or not, plaintiffs’ allegation that defendant COE was aware of these prior lawsuits and the allegations contained therein is sufficient to allege here in this action that defendant COE was aware of the probable dangerous consequences of not including a guard mechanism. The proposed amended pleading also alleges a willful and deliberate failure to avoid such consequences. (See ¶¶21 – 22 of the proposed amended pleading). Although there are some decisions in which the court determined conduct was not despicable as a matter of law following the submission of evidence (see *Lackner, supra*, 135 Cal.App.4th at p. 1213), the court declines to make such a determination based solely upon a pleading or, in this instance, a proposed pleading.

Defendant COE makes no other argument concerning prejudice from the proposed amended pleading.

#### **IV. CONCLUSION**

Based on the foregoing, the plaintiffs’ motion for leave to amend the complaint is GRANTED. Plaintiffs shall file the proposed First Amended Complaint within twenty (20) days of this Order. The Court will prepare the Order.

#### **Calendar Lines # 5**

**Case Name** UHG I LLC vs Travis Fong

**Case No.** 25CV463382

#### **Motion for Order to Deem Admissions Admitted**

##### **I. BACKGROUND**

Before the court is Plaintiff UHG I LLC (“UHG”) motion for requests for admissions (“RFA”) to be deemed admitted against Defendant Travis Fong that was filed on October 20, 2025. No proof of service of the motion to the defendant was submitted.

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 30, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).



The Court has carefully reviewed the moving papers, including: Plaintiff's notice of motion, memorandum of points and authorities in support of UHG's motion; Declaration of Jomari Lucero in support and Exhibit A, and proof of service (totaling 10 pages), as well as the pleadings.

## **II. LEGAL STANDARD**

### **A. PROCEDURAL VIOALTION**

Plaintiff UHG's motion was not accompanied by a proof of service to defendant Travis Fong. Code of Civil Procedure section 1005 and California Rule of Court rule 3.1300 specifically provides that a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. Plaintiff's moving papers provide a proof of service of the request for admissions that were served on July 7, 2025, indicating mail service. However, the moving papers for an order to deem admissions admitted was not accompanied by a proof of service. The Court cannot consider the merits of the motion absent proof of service of the moving papers. The Court notes that no opposition papers were filed, but absent a filing of timely proof of service, the Court cannot consider that the defendant deemed consent to granting of the motion.

### **B. REQUEST FOR ADMISSIONS**

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.
- (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).

## **III. ANALYSIS**

On July 7, 2025, Plaintiff served Defendant Travis Fong with initial discovery, including a request for admissions.(Exhibit A; Declaration of Lucero). The plaintiff provides a proof of service of the RFA on that same date via mail service. (*Id.*). Per Plaintiff, responses were due on August 26, 2025. (Declaration of Lucero). No responses were produced and the plaintiff sent a meet-and-confer letter. (Exhibit B; Declaration of Lucero).

Plaintiff field this motion for an Order to Deem Admissions Admitted. However, as noted above in the procedural violation portion, the plaintiff did not file a proof of service of this motion as required under Code of Civil

Procedure section 1005 or Rule of Court, rule 3.1300. No opposition papers were filed, but given the failure to file a proof of service of the motion, the Court cannot consider the merits of the motion.

#### **IV. CONCLUSION**

Based on the foregoing, the plaintiff's motion is DENIED. The Court will prepare the formal Order.

#### **Calendar Lines # 6**

**Case Name** Daniel Kelly vs Ford Motor Company et al

**Case No.** 25CV467382

#### **Petition to Compel Arbitration**

##### **I. BACKGROUND**

On or around January 21, 2024, Plaintiff Daniel Howard Kelly purchased a 2021 Ford Bronco, vehicle identification number: 1FMDE5FPXMLA20762 ("Subject Vehicle") from Defendant Palm Springs Ford ("Dealership") and entered into a warrant contract with the defendant. (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47). Plaintiff alleges that Dealership "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 49). Plaintiff sued Dealership and Ford Motor Company in May 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Defendant Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

##### **II. LEGAL STANDARD**

Under the Federal Arbitration Act ("FAA"), the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

Pursuant to Code of Civil Procedure section 1281.2: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

### III. ANALYSIS

#### A. THERE IS A VALID AGREEMENT TO ARBITRATE

Defendant Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Motion to Compel Arbitration at p. 6:20-23). The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq). and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5).

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5). Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1). The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ” ]).

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:15-4:9). In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

#### B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIM

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . . , between you and us. . . , which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A).

Plaintiff's sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff's action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiff's claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue "warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership]." (Opposition at p. 2:8-10). That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff's claims.

The court does not reach the defendant Dealership's arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership's arguments on those points.

### **C. THIS ACTION IS STAYED IN ITS ENTIRETY**

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective." (Reply at p. 8:25-27). Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

### **IV. CONCLUSION**

Based on the foregoing, Defendant's petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The Court will prepare the formal Order.

#### **Calendar Lines # 7-8**

**Case Name** Aida Setka vs Subaru of America, Inc. et al

**Case No.** 25 CV469153

#### **Motion to Strike (Line # 7) and Demurrer (Line #8)**

Before the court is (1) defendants' demurrer to first amended complaint for violation of statutory obligations (Line #8); and (2) defendant Subaru of America, Inc.'s motion to strike first amended complaint (Line # 7). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Court addresses the Demurrer (Line #8) first and then the Motion to Strike (Line # 7). The Background portion is addressed in the Demurrer analysis.

### **DEMURRER (LINE #8)**

#### **I. BACKGROUND**

On or about March 8, 2021, plaintiff Aida Setka ("Setka") entered into a warranty contract with defendant Subaru of America, Inc. ("Subaru") regarding a 2021 Subaru Crosstrek vehicle ("Subject Vehicle") manufactured and/or distributed by defendant Subaru. (First Amended Complaint ("FAC"), ¶¶ 7 – 8 and Exh. A). Plaintiff Setka

purchased the Subject Vehicle from defendant Subaru's authorized retail dealership, defendant Capitol Subaru ("Capitol"). (FAC, ¶9).

Defects and nonconformities manifested themselves within the applicable express warranty period including, but not limited to, engine defects, electrical defects, among other defects and non-conformities. (FAC, ¶23).

Plaintiff Setka alleges defendant Subaru concealed a known defect from her. (FAC, ¶77). The 2.0L engine and/or its related components installed in the Subject Vehicle suffer from one or more defects that can result in the loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine ("Engine Defect"). (FAC, ¶78). Prior to sale of the Subject Vehicle, defendant Subaru knew or should have known about the Engine Defect through its exclusive knowledge of non-public, internal data including pre-release test data, early consumer complaints to defendant Subaru's dealers, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by defendant Subaru and its agents. (FAC, ¶¶82, 84, 87, 88, 89, 90). Nevertheless, defendant Subaru and its agents actively concealed the Engine Defect and failed to disclose this defect to plaintiff at the time of her purchase of the Subject Vehicle or thereafter. (*Id.* See also FAC, ¶¶93 and 97, 99, 100). Defendant Subaru either refused to acknowledge the existence of the defects or performed superficial and ineffectual repairs that masked the symptoms of the Engine Defect. (FAC, ¶84). If plaintiff knew about these defects at the time of sale, plaintiff would not have purchased the Subject Vehicle. (FAC, ¶85).

On February 4, 2026, plaintiff Setka filed a complaint against defendants Subaru and Capitol asserting causes of action for:

- (1) Violation of Subdivision (d) of Civil Code Section 1793.2 [against defendant Subaru]
- (2) Violation of Subdivision (b) of Civil Code Section 1793.2 [against defendant Subaru]
- (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2 [against defendant Subaru]
- (4) Breach of the Implied Warranty of Merchantability [against defendant Subaru]
- (5) Negligent Repair [against defendant Capitol]
- (6) Fraudulent Inducement – Concealment [against defendant Subaru]

On March 10, 2026, defendants Subaru and Capitol filed the two motions now before the court, a demurrer to the fifth and sixth causes of action of plaintiff Setka's complaint and a motion to strike plaintiff Setka's prayer for punitive damages.

## **II. LEGAL STANDARD & ANALYSIS**

### **A. NEGLIGENCE REPAIR**

In relevant part, plaintiff Setka's fifth cause of action for negligent repair, which is directed at defendant Capitol only, alleges, plaintiff Setka delivered the Subject Vehicle to defendant Capitol for substantial repair on at least one occasion. (FAC, ¶72). Defendant Capitol breached its duty to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards. (FAC, ¶¶73 – 74). Defendant Capitol's negligence was a proximate cause of plaintiff's damages. (FAC, ¶75).

Defendant Capitol demurs to this fifth cause of action by citing *Zumbrun v. University of Southern California* (1972) 25 Cal.App.3d 1, 12, where the court wrote, "Allegations of damages without allegations of fact to support them are

but conclusions of law, which are not admitted by demurrer.” Defendant Capitol contends plaintiff Setka has not identified any fact(s) to support her allegation that defendant’s negligence caused her damages.

In opposition, plaintiff Setka argues, “The general rule is that the measure of damages for tortious injury to personal property is the difference between the market value of the property immediately before and immediately after the injury, or the reasonable cost of repair if that cost be less than the diminution in value.” (*Pacific Gas & Electric Co. v. Mounteer* (1977) 66 Cal.App.3d 809, 812).

While the court accepts this general rule, the court agrees with defendant Capitol that plaintiff Setka has not alleged that the negligent storage, preparation, or repair of the Subject Vehicle resulted in a reduction in the market value of the Subject Vehicle or that plaintiff Setka incurred cost to repair the negligent storage, preparation, or repair performed by defendant Capitol.

At paragraphs 13 – 16 of the FAC, plaintiff Setka alleges she presented the Subject Vehicle for repair at a Subaru authorized repair facility. Even if the court reads paragraph 72 together with paragraphs 13 – 16 to infer that plaintiff Setka presented the Subject Vehicle to defendant Capitol for repair, there are no allegations that plaintiff incurred any costs in connection with those repairs.

To the extent plaintiff Setka contends defendant Capitol’s negligent repair of the Subject Vehicle resulted in a reduction in its market value, plaintiff Setka has made no such allegation in the FAC nor will the court infer such a fact. At paragraphs 13 – 16 of the FAC, plaintiff Setka generally alleges the multiple repairs performed on the Subject Vehicle were ineffective. The inference the court draws from these allegations is that the Subject Vehicle suffered from an underlying defect which were not cured by these specific repair attempts. Thus, the court would agree with defendant Capitol that any diminution in value is the result of the underlying defect and plaintiff Setka has not sufficiently alleged the negligent repair caused any diminution in the market value of the Subject Vehicle distinct from the underlying defect.

Plaintiff argues additionally that she need not plead facts that are necessarily in the control of defendant Capitol and within its records. However, the court does not agree with plaintiff Setka’s insinuation or assertion that facts concerning plaintiff’s damages are “necessarily” within defendant Capitol’s control.

Accordingly, defendant Capitol’s demurrer to the fifth cause of action in plaintiff Setka’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for negligent repair and on the ground that the pleading is uncertain [Code Civ. Proc., §430.10, subd. (f)] is SUSTAINED with 10 days’ leave to amend.

## **B. FRAUDULEN INDUCEMENT - CONCEALMENT**

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 (*Rattagan*)).

### **1. Statute of Limitations**

Initially, defendant Subaru demurs to the sixth cause of action for fraudulent inducement-concealment on the ground that it is barred by the applicable statute of limitations. A court may sustain a demurrer on the ground of failure to state sufficient facts if “the complaint shows on its face the statute [of limitations] bars the action.” (*E-Fab, Inc. v.*

*Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315). A demurrer is not sustainable on statute of limitations grounds if there is only a possibility that the cause of action is time-barred; the defense must be clearly and affirmatively apparent from the allegations of the pleading [and matters of which the court may properly take judicial notice]. (*Id.*, at pp. 1315-1316).<sup>1</sup> When evaluating whether a claim is time-barred, the court must determine: (1) which statute of limitations applies, and (2) when the claim accrued. (*Id.*, at p. 1316).

The limitations period for a claim predicated on fraud is three years from the date of “the discovery, by the aggrieved party, of the facts constituting the fraud.” (Code Civ. Proc., § 338, subd. (d); see *Britton v. Girardi* (2015) 235 Cal.App.4th 721, 734).

Defendant Subaru apparently argues the claim for fraud accrued on the date plaintiff entered into a warranty contract with defendant Subaru for the Subject Vehicle, March 8, 2021, and that the statute of limitations expired on March 8, 2024 and since plaintiff did not commence this action until June 24, 2025, plaintiff’s fraud claim is barred. However, this completely ignores the express language in the statute of limitations for fraud which states that the cause of action accrues on the date of discovery of the facts constituting the fraud. Defendant Subaru contends plaintiff is bound by her allegation that the Subject Vehicle contained or developed defects during the warranty period. Even so, the accrual does not commence upon the development of the defects. Rather, the cause of action accrues upon plaintiff’s discovery of the factual basis for fraud.

Plaintiff specifically pleads she “discovered Defendant’s wrongful conduct ... after the Vehicle continued to exhibit symptoms of defects following Defendant’s unsuccessful attempts to repair them.” (FAC, ¶46). When read in conjunction with paragraphs 13 – 16 of the FAC which allege four repair attempts made between August 23, 2024 and April 21, 2025, the court finds such allegations sufficiently plead a delayed discovery of fraud until April 21, 2025. “When a plaintiff reasonably should have discovered facts for purposes of the accrual of a case of action or application of the delayed discovery rule is generally a question of fact, properly decided as a matter of law only if the evidence (or, in in this case, the allegations in the complaint and facts properly subject to judicial notice) can support only one reasonably conclusion.” (*Broberg v. The Guardian Life Ins. Co. of America* (2009) 171 Cal.App.4th 912, 921).

Here, there are no allegations in the complaint which establish, as a matter of law, that plaintiff discovered or should have discovered defendant Subaru’s alleged fraudulent acts more than three years before she filed the instant action. Consequently, as plaintiff maintains, the viability of the statute of limitations defense is not clearly and affirmatively apparent from the allegations of the FAC and, therefore, defendant Subaru’s demurrer to the sixth cause of action on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] i.e., it is barred by the applicable statute of limitations, is OVERRULED.

## 2. Specificity

### (a) Fact

It is not entirely clear, but defendant Subaru apparently contends plaintiff Setka has not alleged the concealment of a material fact because the purported fact (existence of an engine defect) is an allegation made upon information and belief. “Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he

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<sup>1</sup> See also *Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 992-993: “[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense.” (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191 [213 Cal. Rptr. 3d 850]; accord, *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191 [151 Cal. Rptr. 3d 827, 292 P.3d 871] [application on demurrer of affirmative defense of statute of limitations based on facts alleged in a complaint is a legal question subject to de novo review]; *Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 224 [115 Cal. Rptr. 3d 274] [“It must appear clearly and affirmatively that, upon the face of the complaint [and matters of which the court may properly take judicial notice], the right of action is necessarily barred.”]).

has information leading him to believe that the allegations are true.” (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792). In *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158 – 1159, the court wrote, a “[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true, and thus a pleading made on information and belief is insufficient if it ‘merely assert[s] the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’ ”

Here, plaintiff Setka’s allegation, on information and belief, concerning the existence of the Engine Defect is based upon her factual allegations that she experienced various symptoms she personally experienced with the Subject Vehicle and the multiple repair attempts she made which lead her to believe in the existence of the Engine Defect. Thus, the court is not persuaded by defendant Subaru’s argument that the sixth cause of action’s requirement of a material fact is too “vague” and “inconclusive.”

*(b) Intent to Defraud*

Defendant Subaru argues next that in order to allege an intent to defraud, the defendant must have actual or constructive knowledge of the concealed fact but plaintiff has not alleged any facts establishing defendant Subaru had knowledge of the defect. Such allegations of knowledge and factual allegations about how defendant Subaru acquired such knowledge are found at paragraphs 82, 84, 87, 88, 89, and 90. The court finds such allegations sufficiently allege the factual detail to support the more general allegation of defendant Subaru’s knowledge of the alleged defect.

*(c) Actual Damages*

Finally, defendant Subaru contends plaintiff Setka has not sufficiently alleged any damage resulting from the fraud. The court disagrees. At paragraphs 85 and 96, plaintiff Setka alleges she would not have purchased the Subject Vehicle had she known about the undisclosed defects at the time of sale.

**III. CONCLUSION**

Based on the foregoing, Defendant Subaru’s demurrer to the sixth cause of action in plaintiff Setka’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for fraudulent inducement-concealment and on the ground that the pleading is uncertain [Code Civ. Proc., §430.10, subd. (f)] is OVERRULED.

The Court will prepare the formal Order.

**MOTION TO STRIKE (LINE #7)**

In light of the court’s ruling above with regard to the sixth cause of action, defendant Subaru’s motion to strike the prayer for punitive damages from plaintiff Setka’s FAC is DENIED. The Court will prepare the formal Order.

**Calendar Lines # 9**

**Case Name** Creditors Adjustment Bureau, Inc. vs Jam General Contractors Inc. dba J A M General Contracts Inc., et al.

**Case No.** 25 CV479068

**Motion to Strike**

Before the court is plaintiff’s motion to strike answer. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.



## **I. BACKGROUND**

State Compensation Insurance Fund (“Fund”) and defendants Jam General Contractors Inc. dba JAM General Contractors Inc. (“JGCI” or “Defendants”) entered into a written agreement wherein Fund agreed to provide a policy of workers compensation insurance to JGCI and JGCI agreed to pay premiums in accordance with the terms and conditions of said policy. (Complaint, ¶11). Defendants breached that part of the policy requiring Defendants to submit to and allow Fund to access the records of Defendants’ business operations and payroll for purposes of conducting an audit, despite Fund’s request. (Complaint, ¶14). Thereafter, Fund generated an estimated invoice in the amount of \$21,678.6. (*Id*). Defendants failed to pay anything towards this estimated invoice. (*Id*).

Fund assigned the claims sued herein upon to plaintiff Creditors Adjustment Bureau, Inc. (“CABI” or “Plaintiff”) for collection purposes only. (Complaint, ¶4).

On October 30, 2025, Plaintiff filed a complaint against defendant JGCI asserting a single cause of action for breach of contract.

On December 10, 2025, Defendant JGCI filed an answer to Plaintiff’s complaint as a self-represented party.

On April 17, 2026, Plaintiff filed the motion now before the court, a motion to strike defendant JGCI’s answer.

## **II. LEGAL STANDARD**

Pursuant to Code of Civil Procedure section 436 a motion to strike could be brought on the following two grounds:

- a. Strike out any irrelevant, false, or improper matter inserted in any pleading.
- b. Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.(Code Civ. Proc. §436).

A corporation cannot appear in propria persona and can only appear by and through an attorney of record. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 731; see also *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1143). The prohibition is meant to prevent the unlicensed practice of law by a representative that would likely appear on behalf of the corporation. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5).

## **III. ANALYSIS**

Plaintiff asks this court to strike Defendant’s answer on the basis that Defendant may not represent itself without an attorney.

In opposition, Defendant does not dispute the proposition and authorities cited by Plaintiff. Instead, Defendant indicates it has “hired a lawyer, but . . . have not been able to pay for the retainer.” As of the hearing date of Plaintiff’s motion to strike, no formal substitution of attorney has been filed on behalf of Defendant.

## **IV. CONCLUSION**

Based on the foregoing, Plaintiff’s motion to strike Defendant’s answer is GRANTED. The Court will prepare the formal Order.